



Mark Dosen <mark@dosen1.com>

Fwd: Construction Traffic on Oakes Road.

1 message

Joelle Magyar <magyarj@bbhcsd.org>

Wed, Jul 29, 2020 at 4:18 PM

To: Kathleen Mack <mackk@bbhcsd.org>, Mark Dosen <dosenm@bbhcsd.org>, kramere@bbhcsd.org, Fred Pedersen <pedersenf@bbhcsd.org>, Brittany Wigman <>wigmanb@bbhcsd.org>, yaniglosc@bbhcsd.org

See below

Joelle Magyar, Superintendent
Brecksville-Broadview Heights City Schools
440-740-4000

Begin forwarded message:

From: David Riley <rileylaw@roadrunner.com>

Date: July 29, 2020 at 3:47:42 PM EDT

To: Joelle Magyar <Magyarj@bbhcsd.org>, Craig Yaniglos <yaniglosc@bbhcsd.org>

Subject: FW: Construction Traffic on Oakes Road.

Joelle and Craig, I was included on the email chain below. You may want to share this with the Board as I think this is a political issue.

I understand that at the time the traffic flow pattern was agreed to with Shook there was no signage on Oakes Road regarding truck traffic. A plan was developed to take topsoil and "spoils" from our site and to transport it to a facility in Broadview Heights that separates it, cleans it and resells it. I also understand that Broadview Heights has recently stated it will ticket truck drives on Oakes road and erected signage stating no "thru traffic" and "no truck". I understand that Oakes Road is a County Road. Our subcontractor use of Oakes is not for thru traffic but to get to a business within the City.

Sergio opines that the ordinance excludes County Roads and I agree with his reading of the ordinance. The subcontractor's use of Oakes is consistent with the ordinance. Broadview Heights' action appear to be inconsistent with the ordinance. I also understand from Eric's email below that this extending the truck routes by 25 minutes has a tremendous impact on the project that requires adding trucks so that the truck loading equipment and operators will not be idle. Think bucket brigade. The empty bucket has to get back to be filled or the filler sit around. He projects that increased cost to be \$50,000. I anticipate that Shook will look to the owners for those funds. While the action of Broadview Heights may be inconsistent with its own ordinance, the challenge is how to address it.

Issues:

How to challenge the signage/police ticketing? This raises both political and legal issues. The legal issue would involve someone getting a ticket and challenging that in Court. This will take months and the Driver would be the one challenging it. I do not see this as a viable strategy both on the individual front of putting the truck driver on the bumper and time.

Politically, we could publicly appeal to Mayor and/or City Council that they are not following their Ordinances.

If the issue is road degradation due to truck traffic, we face a challenge in that we are not empowered to use bond proceeds or statute to repair roads.

Suggestions

I recommend approaching the Mayor and Council, informing of the economic consequences and see if they will remove the signage. We may want to involve some prominent Broadview Heights residents who are supportive.

Pass a Board Resolution authorizing an additional \$50,000 (this is for the disposal of the excavated material) for the project to cover additional trucking costs due to Broadview Heights Action.

I am concerned that Shook has already added trucks and we are incurring costs.

David J. Riley

The Riley Law Firm

24502 Cornerrstone

Westlake, OH 44145

Rileylaw@roadrunner.com

440 801 1960

From: DiGeronimo, Sergio (Prosecutor) <sdigeronimo@brecksville.oh.us>

Sent: Wednesday, July 29, 2020 9:21 AM

To: Hruby, Mayor <mayorhruby@brecksville.oh.us>

Cc: David J. Riley <Rileylaw@roadrunner.com>

Subject: Re: Construction Traffic on Oakes Road.

The language in Ordinance 440.01 (B) is what I am interpreting to allow the trucks:

"No Person shall operate a vehicle exceeding a size as specified by Ohio R.C. 5507.01 through 5577.09, or otherwise not in conformity with Ohio R.C. 4513.01 through 4513.37 or exceeding a gross weight of 5 tons, upon any street in the municipality **other than state routes and county roads**, except those local streets designated as a truck route and marked as such by appropriate traffic signs, and except when such operation is necessary to **load or unload property, or to go to or from the usual place of storage of such vehicle or to perform any other legitimate business** or act other than passage through the municipality. Operators of vehicles so deviating from either a state route or a designated truck route within the municipality shall confine such deviation to that required in order to accomplish the purpose of the departure. On county roads, Council or other duly designated local authority shall establish reasonable weight limits.....

I have not heard back from the BVHTS Law Director, I will reach out again for their position.

Thanks

Sergio

On Jul 29, 2020, at 8:52 AM, Hruby, Mayor <mayorhruby@brecksville.oh.us> wrote:

I do not believe they can legally prohibit truck traffic.

Does the school wish to adhere to bhts prohibition?

Sent from my iPhone

On Jul 29, 2020, at 8:26 AM, Hruby, Mayor <mayorhruby@brecksville.oh.us> wrote:

Sent from my iPhone

Begin forwarded message:

From: Eric Gradert <egradert@shookconstruction.com>
Date: July 29, 2020 at 8:17:56 AM EDT
To: Joelle Magyar <magyarj@bbhcsd.org>, "Hruby, Mayor" <mayorhruby@brecksville.oh.us>
Subject: RE: Construction Traffic on Oakes Road.

Good morning,

Follow up to see if any progress has been made with Broadview Heights. Also, if you need anything from us, we can certainly lean into this issue.

We are still currently routing our trucks east of the project site, to 21. This has added 25 min to the round trip. There is still approximately 12,000 CY of export remaining and in order to load truck at a consistent rate, Platform has had to add (5) additional trucks per day. This equates to \$50k. We will continue to follow the new route till we hear otherwise.

Thanks,

Eric Gradert, PMP, LEED Green Associate
Project Manager

6860 W. Snowville Road, Suite 100 | Brecksville, OH 44141

P: 440.838.5400 | F: 440.838.1105 | C: 440.785.8425
E: egradert@shookconstruction.com | www.shookconstruction.com

<image001.jpg>

Cleveland | Columbus | Dayton | Indianapolis | Raleigh

From: Eric Gradert
Sent: Wednesday, July 22, 2020 2:22 PM
To: Joelle Magyar <magyarj@bbhcsd.org>;
mayorhruby@brecksville.oh.us
Subject: FW: Construction Traffic on Oakes Road.

Mayor / Joelle,

I may have spoke too soon. Please let me know how you want Shook to handle this.

The are some inconsistencies with the cited ordinance, in that Oaks is a County Road and the traffic is not "through" traffic. However, I will hold off on responding because I assume there are likely other conversations that are happening.

Also, I figured it was worth noting that the large portion of the recent truck traffic has been due to hauling excess topsoil to Buyansky Brother Landscaping which is located just north of the intersection of Broadview and Oaks.

Thanks,

Eric Gradert, PMP, LEED Green Associate
Project Manager

6860 W. Snowville Road, Suite 100 | Brecksville, OH 44141
P: 440.838.5400 | F: 440.838.1105 | C: 440.785.8425
E: egradert@shookconstruction.com | www.shookconstruction.com

<image004.jpg>

Cleveland | Columbus | Dayton | Indianapolis | Raleigh

From: steven raiff <sraiff@broadviewheightspd.org>
Sent: Wednesday, July 22, 2020 10:42 AM
To: Eric Gradert <egradert@shookconstruction.com>
Cc: magyarj@bbhcsd.org; mayorhruby@brecksville.oh.us
Subject: Construction Traffic on Oakes Road.

Mr. Gradert, attached is the copy of the codified ordinance 440.01 you requested. Section (D) covers through trucks. The truck traffic can continue through the remainder of this week while you plan a different route. No through trucks will be permitted on Oakes Rd. beginning Monday, July 27th, 2020.

Respectfully,

--

Steven Raiff

Chief of Police

Broadview Heights Police Department

[9543 Broadview Rd., Broadview Heights, Ohio 44147](#)

sraiff@broadviewheightspd.org

440-526-5401 Fax: 440-717-4137

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